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About this compilation

This compilation

This is a compilation of the *Atomic Energy Act 1953* that shows the text of the law as amended and in force on 30 November 2022 (the ***compilation date***).

The notes at the end of this compilation (the ***endnotes***) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Legislation Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the series page on the Legislation Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the series page on the Legislation Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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An Act relating to Atomic Energy

Part I—Preliminary

1 Short title

This Act may be cited as the *Atomic Energy Act 1953*.

2 Commencement

This Act shall come into operation on the day on which it receives the Royal Assent.

5 Interpretation

(1) In this Act, unless the contrary intention appears:

atomic energy means any form of energy released in the course of nuclear fission, nuclear fusion or other nuclear transmutation.

Australia includes the Territories.

Commission means the Australian Atomic Energy Commission that was constituted under this Act before the enactment of the *Australian Nuclear Science and Technology Organisation Act 1987*.

historic section 41 authority means the authority under section 41 that was conferred on Energy Resources of Australia Limited on 14 November 1999, as in force from time to time.

Land Council has the same meaning as in the *Aboriginal Land Rights (Northern Territory) Act 1976*.

minerals includes all substances obtained or obtainable from the earth by underground or surface working.

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mining-related operations, in relation to an area of land, means operations (including operations for mining) of a kind referred to in paragraph 41(2)(c) in relation to that area of land.

Northern Territory Mining Minister has the same meaning as in the *Aboriginal Land Rights (Northern Territory) Act 1976*.

Part III authority means an authority under section 41 or 41CA.

prescribed substance means:

(a) uranium, thorium, an element having an atomic number greater than 92 or any other substance declared by the regulations to be capable of being used for the production of atomic energy or for research into matters connected with atomic energy; and

(b) any derivative or compound of a substance to which paragraph (a) applies.

Ranger Project Area means the land described in Schedule 2 to the *Aboriginal Land Rights (Northern Territory) Act 1976*.

rehabilitation authority means an authority under section 41CA.

rehabilitation requirement, in relation to an area of land, means a requirement imposed by a Part III authority that relates to the protection, rehabilitation, remediation or monitoring of the whole, or a part, of that area of land.

(4) A reference in this Act to persons engaged in a joint venture shall be construed as a reference to persons carrying on or proposing to carry on any operations together, whether or not in partnership.

6 Act binds the Crown

(1) This Act binds the Crown in right of the Commonwealth, of each of the States, of the Australian Capital Territory and of the Northern Territory.

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(2) This Act does not make the Crown in right of the Commonwealth, of a State, of the Australian Capital Territory or of the Northern Territory liable to be prosecuted for an offence.

7 Extension to external Territories

This Act extends to every external Territory.

34 Exercise of powers

The powers conferred by this Act may be exercised only:

(a) for purposes related to trade or commerce with other countries;

(b) for purposes related to trade or commerce among the States, between a State and a Territory or between 2 Territories;

(c) in relation to substances situated in or recovered from, or things done or proposed to be done in or in connection with, the Ranger Project Area;

(d) in relation to substances situated in or recovered from, or things done or proposed to be done in or in connection with, a Territory; or

(e) for other purposes of the Commonwealth not being purposes related to the defence of the Commonwealth.

34A Application of the *Criminal Code*

Chapter 2 of the *Criminal Code* applies to all offences created by this Act.

Note: Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.

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Part II—Title to and information concerning prescribed substances

35 Title of Crown to prescribed substances in Territories of the Commonwealth

(1) This section applies to substances which, on or after the commencement of this Act, are prescribed substances existing in their natural condition, or in a deposit of waste material obtained from an underground or surface working, on or below the surface of land in a Territory, whether alienated from the Crown or not and, if alienated, whether alienated before or after the commencement of this Act.

(2) A substance to which this section applies which:

(a) is a prescribed substance at the commencement of this Act; and

(b) was not the property of the Commonwealth immediately before 11 September 1946 (being the date of commencement of the *Atomic Energy (Control of Materials) Act 1946*);

is declared to have become the property of the Commonwealth on that date.

(3) A substance to which this section applies which:

(a) becomes a prescribed substance after the commencement of this Act; and

(b) is not, immediately before the date on which it becomes a prescribed substance, the property of the Commonwealth;

becomes, by force of this Act, the property of the Commonwealth on that date.

(4) The title of the Commonwealth to any substance to which this section applies is subject to any rights granted after 10 September, 1946 by or under the law of a Territory, with express reference to that substance, but to no other rights.

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36 Notification of discovery of prescribed substance

(1) A person who, whether before or after the commencement of this Act, has discovered that a substance that is or becomes a prescribed substance, or minerals containing a substance that is or becomes a prescribed substance, occurs or occur at any place in Australia shall report that discovery by notice in writing to the Minister within one month after:

(a) the commencement of this Act;

(b) the date of the making of the discovery; or

(c) the date on which the substance becomes a prescribed substance;

whichever is the latest.

Penalty:

(a) in the case of a natural person—20 penalty units; or

(b) in the case of a body corporate—100 penalty units.

(2) Subsection (1) does not require a person to report a discovery that he or she has reported to a Minister before the commencement of this Act.

(3) Subsection (1) does not apply if the person has a reasonable excuse.

Note: A defendant bears an evidential burden in relation to the matter in subsection (3), see subsection 13.3(3) of the *Criminal Code*.

(4) An offence against subsection (1) is an offence of strict liability.

Note: For ***strict liability***, see section 6.1 of the *Criminal Code*.

37 Power to obtain information

(1) The Minister may, by notice in writing served on a person, require that person to furnish in writing, in the manner specified in the notice and within the time or times and in respect of the period or periods (if any) so specified, a statement, return or returns containing such particulars as are specified in the notice relating to:

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(a) prescribed substances in the person's possession or under the person's control;

(b) minerals of a kind specified in the notice in the person's possession or under the person's control or present on or under land owned or occupied by the person, being minerals from which, in the opinion of the Minister, a prescribed substance can be obtained; or

(c) work carried out by the person or on the person's behalf or under the person's direction in connexion with the production or use of a prescribed substance or of minerals from which, in the opinion of the Minister, a prescribed substance can be obtained.

(2) A person must not refuse to comply with a notice served on the person under subsection (1).

Penalty:

(a) in the case of a natural person—20 penalty units; or

(b) in the case of a body corporate—100 penalty units.

(3) Subsection (2) does not apply if the person has a reasonable excuse.

Note: A defendant bears an evidential burden in relation to the matter in subsection (3), see subsection 13.3(3) of the *Criminal Code*.

(4) A person must not fail to comply with a notice served on the person under subsection (1).

Penalty:

(a) in the case of a natural person—20 penalty units; or

(b) in the case of a body corporate—100 penalty units.

(5) Subsection (4) does not apply if the person has a reasonable excuse.

Note: A defendant bears an evidential burden in relation to the matter in subsection (5), see subsection 13.3(3) of the *Criminal Code*.

(6) An offence against subsection (4) is an offence of strict liability.

Note: For ***strict liability***, see section 6.1 of the *Criminal Code*.

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Part III—The Ranger Project

Division 1—Authority to carry on mining etc.

41 Authority to mine prescribed substances on behalf of, or in association with, the Commonwealth

Minister may confer authority

(1) The Minister may, by writing under his or her hand, authorize a person, or 2 or more persons engaged in a joint venture, to carry on, on behalf of or in association with the Commonwealth, operations in accordance with this section in relation to the whole, or a specified part, of the land in the Ranger Project Area.

Powers under authority

(2) While the authority is in force in relation to an area of land, the person or persons on whom the authority has been conferred may (subject to any conditions or restrictions specified in the authority and any requirements imposed by the authority):

(a) enter upon that land, with such workers and other persons as he or she thinks fit, and bring on to that land such machinery, vehicles and other things as he or she thinks fit;

(b) take possession of the whole or a part of that land;

(c) carry on, upon or under that land, operations for discovering prescribed substances, and for mining, recovering, treating and processing prescribed substances and such other minerals as it is necessary or convenient to mine or recover in order to obtain prescribed substances;

(ca) carry on, upon or under that land, operations relating to the protection, rehabilitation, remediation or monitoring of that land;

(cb) carry on, upon or under that land, any other operations authorized by the authority as mentioned in subsection (2AAA);

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(d) for the purposes of operations referred to in paragraph (c), (ca) or (cb):
  (i) erect or install buildings (including residential buildings), structures and machinery on that land;
  (ii) cut and construct water races, drains, dams, tramways and roads on that land;
  (iii) bore or sink for water, and pump, raise or use water, on that land; and
  (iv) do other work on that land;

(e) demolish or remove buildings, structures and machinery erected or installed on that land;

(ea) remove from that land persons who enter upon, or are on, that land otherwise than:
  (i) with the consent of the person so authorized; or
  (ii) in pursuance of a right or power conferred by law;

(f) pass over, or authorize persons and things to pass or be carried over, land giving access to that land; and

(g) do all such other things as are necessary or convenient for the effectual exercise of the powers specified in the preceding paragraphs of this subsection.

(2AAA) An authority under this section may, for the purposes of paragraph (2)(cb), authorize the carrying on of specified operations in relation to the whole, or a specified part, of the land in the Ranger Project Area.

(2AAB) To avoid doubt, if an authority under this section is in force in relation to an area of land, conditions or restrictions specified in the authority, or requirements imposed by the authority, may have the effect of prohibiting the person or persons on whom the authority has been conferred from doing a thing referred to in a paragraph in subsection (2) in relation to that land.

(2AA) Operations carried on on the Ranger Project Area by the person or persons specified in an authority under this section (being an authority, whether granted before or after the commencement of this subsection, that authorizes, or purports to authorize, that

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person, or those persons as joint venturers, to carry on, on behalf of the Commonwealth, operations in accordance with this section on the Ranger Project Area subject to conditions and restrictions specified in the authority) shall, if carried on as provided by the authority and in accordance with the Ranger Project agreement, be deemed, for the purposes of this Act, to be carried on on behalf of the Commonwealth and to be authorized by the authority.

(2AB) The reference in subsection (2AA) to the Ranger Project agreement shall be construed as a reference to the agreement known as the Ranger Uranium Project Government Agreement that was made on 9 January 1979 between the Commonwealth, Peko-Wallsend Operations Ltd., Electrolytic Zinc Company of Australasia Limited and the Commission or, if that agreement is amended, that agreement as amended.

Conditions, restrictions and requirements

(2AC) An authority under this section may specify conditions or restrictions to which the authority is subject.

(2AD) An authority under this section may impose requirements on the person or persons on whom the authority has been conferred.

(2AE) Without limiting subsection (2AD), the requirements that may be imposed by an authority under this section include rehabilitation requirements in relation to the whole, or a part, of the land in the Ranger Project Area.

Period when authority is in force

(2A) Subject to Division 3, an authority under this section continues in force for the period for which the authority is conferred unless, before the expiration of that period, the authority:

(a) is varied to extend the period for which the authority is in force; or

(b) terminates under a provision of this Act or under a provision of the authority; or

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(c) is revoked under a provision of this Act or under a provision of the authority.

Note: Division 3 allows the Minister to declare that a Part III authority, or specified provisions of a Part III authority, are no longer in force in relation to a specified area of land.

Vesting of property in Commonwealth

(3) All prescribed substances and minerals mined or otherwise recovered in pursuance of an authority under this section that are not otherwise the property of the Commonwealth are, by force of this section, vested in the Commonwealth.

41B Assignment of interests in authorities under section 41

(1) Where:

(a) a person (in this subsection and in subsection (2) referred to as the ***assignor***), being the person on whom an authority has been conferred under section 41 or, in a case where an authority has been conferred under section 41 on 2 or more persons engaged in a joint venture, one of those persons, applies in writing to the Minister for the Minister's consent to the assignment by the assignor of the whole of his or her interest in the authority to a person named in the application (in this subsection and in subsection (2) referred to as the ***assignee***), not being, in a case where the authority has been conferred on 2 or more persons engaged in a joint venture, the other person or one of the other persons, as the case may be, on whom the authority has been conferred;

(b) the Minister is satisfied that the assignee agrees to the assignment; and

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(c) in a case where the authority has been conferred on 2 or more persons engaged in a joint venture, the Minister is satisfied that the assignor gave the other person or each of the other persons, as the case may be, on whom the authority has been conferred not less than 3 months' notice of the assignor's intention to make an application under this section;

the Minister may, in his or her discretion, by instrument in writing under his or her hand, consent to the assignment.

(2) Where the Minister consents, under subsection (1), to the assignment by a person of his or her interest in an authority under section 41, the name of the assignee shall be deemed, from the time of the signing of the instrument of consent, to be specified in the authority in lieu of the name of the assignor.

(3) Where:

(a) an authority has been conferred under section 41 on 2 or more persons engaged in a joint venture;

(b) one of those persons (in this subsection and subsection (4) referred to as the ***assignor***) applies in writing to the Minister for the Minister's consent to the assignment by the assignor of the whole of his or her interest in the authority to the other person or to one or more of the other persons, as the case may be;

(c) the Minister is satisfied that the person or persons to whom the interest is to be assigned agrees or agree to the assignment; and

(d) in a case where the authority has been conferred on more than 2 persons and the interest is to be assigned to some only of the other persons referred to in paragraph (b), the Minister is satisfied that the assignor gave to the person or each of the persons, as the case may be, to whom the interest is not to be assigned not less than 3 months' notice of his or her intention to make an application under this subsection;

the Minister may, in his or her discretion, by instrument in writing under his or her hand, consent to the assignment.

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(4) Where the Minister consents, under subsection (3), to the assignment of an interest in an authority under section 41, the name of the assignor shall be deemed, from the time of the signing of the instrument of consent, to be omitted from the authority.

(5) A reference in this Act to the person or persons on whom an authority has been conferred under section 41 shall, in a case where the Minister has consented under subsection (1) or (3) to the assignment of an interest in the authority, be construed as a reference to the person or persons for the time being specified, or deemed by the operation of subsection (2) or (4) to be specified, in the authority as the person or persons on whom the authority has been conferred.

41C Further authority under section 41 in respect of Ranger Project Area

(1) Where:

(a) an authority under section 41 (in this section referred to as the ***current authority***), other than an authority conferred by virtue of this section, is in force in respect of the Ranger Project Area;

(b) the persons on whom the current authority has been conferred (in this section referred to as the ***applicants***) apply in writing to the Minister, not earlier than 6 years and not later than 4 years before the expiration of the period (in this section referred to as the ***mining period***) during which the applicants are authorized under that authority to carry on, upon or under the Ranger Project Area, operations for mining prescribed substances or other minerals, for the conferring under section 41 of a new authority in respect of the Ranger Project Area for a further period (being a period that is not less than 7 years and not longer than the period for which the current authority was conferred) specified in the application; and

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(c) the application is not deemed by subsection (6) to be withdrawn;

the applicants are entitled in accordance with this section to have a new authority conferred on them under section 41 in respect of the Ranger Project Area for a period (in this section referred to as the ***relevant period***) equal to the period specified in the application and commencing at the expiration of the mining period.

(2) The applicants are not entitled under subsection (1) to have the new authority referred to in that subsection conferred on them unless, not later than 9 months before the expiration of the mining period:

(a) the agreement dated 3 November 1978 entered into under section 44 of the *Aboriginal Land Rights (Northern Territory) Act 1976* between the Commonwealth and the Northern Land Council established under that Act is extended so as to apply in respect of the relevant period; or

(b) a further agreement is entered into under that section between the Commonwealth and the relevant Land Council established under that Act in respect of the relevant period (being an agreement in relation to such part of the Ranger Project Area as is or becomes Aboriginal land within the meaning of that Act).

(3) Where an application is made under subsection (1), the Minister administering the *Aboriginal Land Rights (Northern Territory) Act 1976* shall endeavour to obtain, not later than one year before the expiration of the mining period, the extension of the agreement referred to in paragraph (a) of subsection (2) or the further agreement referred to in paragraph (b) of that subsection.

(4) If the agreement referred to in paragraph (a) of subsection (2) is extended as mentioned in that paragraph or a further agreement is entered into as mentioned in paragraph (b) of that subsection, the Minister shall:

(a) as soon as practicable, after consulting with the applicants, determine the conditions and restrictions to which the new

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authority is to be subject, being conditions and restrictions that:

(i) subject to subparagraph (ii), include conditions and restrictions that the Minister is satisfied will ensure the rehabilitation, in the manner and to the extent provided by the current authority, of the area affected by operations carried on under the current authority; and

(ii) are not inconsistent with the obligations of the Commonwealth under the extended agreement or the further agreement, as the case may be; and

(b) as soon as practicable, but not later than 6 months before the expiration of the mining period, give to the applicants a notice in writing setting out those conditions and restrictions.

(5) Where the applicants have within 3 months following the receipt by them of the notice referred to in paragraph (b) of subsection (4) informed the Minister in writing that they wish to proceed with the application, the Minister shall, before the expiration of the mining period, by instrument in writing under his or her hand, revoke the current authority with effect from the expiration of the mining period and confer a new authority under section 41 on the applicants in respect of the Ranger Project Area in accordance with subsection (1), being a new authority that is subject to the conditions and restrictions determined in accordance with subsection (4).

(6) Where the applicants have not within the 3 months referred to in subsection (5) informed the Minister in writing that they wish to proceed with the application, they shall be deemed to have withdrawn the application and are not entitled to make a further application under subsection (1).

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Division 2—Authority to carry on rehabilitation etc.

41CA Authority to carry on rehabilitation etc.

Minister may confer rehabilitation authority

(1) If a person or persons apply under section 41CB the Minister may, in writing, confer on the person or persons an authority (a ***rehabilitation authority***) to carry on any of the following:
   (a) specified operations relating to the protection, rehabilitation, remediation or monitoring of the whole, or a specified part, of the land in the Ranger Project Area;
   (b) specified operations of another kind in relation to the whole, or a specified part, of the land in the Ranger Project Area.

(2) However, a rehabilitation authority (whether as originally conferred or as varied in accordance with this Act) must not authorize the carrying on of mining-related operations in relation to any part of the land in the Ranger Project Area.

Note: For ***mining-related operations***, see subsection 5(1).

(3) There is no limit on the number of rehabilitation authorities that may be conferred on a person or persons under this section.

Applicant must agree to terms of rehabilitation authority

(4) The Minister must not confer a rehabilitation authority on a person or persons under this section unless:
   (a) before the Minister confers the rehabilitation authority, the Minister gives the person or persons written notice of the proposed terms of the authority, including:
      (i) the operations that are to be authorized by the authority; and
      (ii) the period for which the authority is to be in force; and
      (iii) any conditions or restrictions to which the authority is to be subject; and

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(iv) any requirements that are to be imposed by the authority (including any rehabilitation requirements that are to be imposed in accordance with section 41CE); and

(b) before the Minister confers the rehabilitation authority, the persons or persons notify the Minister in writing that the person or persons agree to those proposed terms; and

(c) the terms of the rehabilitation authority that is conferred on the person or persons are the same as the proposed terms agreed to by the person or persons under paragraph (b).

Agreement with Land Council must be in force

(5) The Minister must not confer a rehabilitation authority under this section unless, at the time when the rehabilitation authority is conferred, the following conditions are satisfied in relation to each area of land to which the authority relates:

(a) an agreement between the Commonwealth and the Land Council for the area of land, of the kind referred to in subsection 44(2) of the *Aboriginal Land Rights (Northern Territory) Act 1976* (as that Act applies in relation to the Ranger Project Area), is in force;

(b) that agreement relates to:

(i) the area of land; and

(ii) the whole of the period for which the rehabilitation authority is to be in force in relation to the area of land (as that period is specified in the rehabilitation authority at the time when it is conferred).

Note: The version of subsection 44(2) of the *Aboriginal Land Rights (Northern Territory) Act 1976* that applies in relation to the Ranger Project Area is the version in force immediately before the commencement of the *Aboriginal Land Rights (Northern Territory) Amendment Act (No. 3) 1987*: see section 8 of that amendment Act.

Consultation with Land Council

(6) The Minister must not confer a rehabilitation authority under this section unless, before conferring the authority, the Minister

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consults on the proposed authority with the Land Council for each area of land to which the authority relates.

When rehabilitation authority is in force

(7) Subject to Division 3, a rehabilitation authority is in force for the period specified in the authority unless, before the end of that period, the authority:
   (a) is varied to extend the period for which the authority is in force; or
   (b) terminates under a provision of this Act or under a provision of the authority; or
   (c) is revoked under a provision of the authority.

Note: Division 3 allows the Minister to declare that a Part III authority, or specified provisions of a Part III authority, are no longer in force in relation to a specified area of land.

Copies of the rehabilitation authority

(8) If the Minister confers a rehabilitation authority under this section, the Minister must give a copy of the authority to each of the following:
   (a) the person or persons on whom the authority has been conferred;
   (b) the Land Council for each area of land to which the authority relates;
   (c) the Minister who administers the *Environment Protection and Biodiversity Conservation Act 1999*;
   (d) the Northern Territory Mining Minister.

41CB Application for rehabilitation authority

Who may apply

(1) The following persons may apply in writing to the Minister for a rehabilitation authority:
   (a) a person on whom an authority under section 41 has been conferred;

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(b) a person on whom a rehabilitation authority has been conferred (whether or not an authority under section 41 has previously been conferred on the person).

(2) There is no limit on the number of times a person or persons may apply under subsection (1).

When application may be made

(3) Subject to subsections (4) and (5), an application under subsection (1) may be made at any time.

(4) If:

(a) an authority under section 41 is in force immediately before the commencement of this subsection; and

(b) a person on whom the authority has been conferred does not apply for a rehabilitation authority under subsection (1) of this section before the following time (the ***last application time***):

(i) unless subparagraph (ii) of this paragraph applies—the end of the period of 18 months beginning on the day that this subsection commences;

(ii) such later time (if any) as is determined by the Minister under subsection (6) of this section;

then the person cannot apply for a rehabilitation authority under subsection (1) of this section after the last application time.

Note: If an authority under section 41 is in force immediately before the commencement of this subsection, there are restrictions on when the authority may be varied before the last application time: see subsections 41CO(1) and (2).

(5) If:

(a) a rehabilitation authority specifies that the authority is to be in force for a particular period (the ***rehabilitation period***); and

(b) a person on whom the authority has been conferred does not apply for a further rehabilitation authority under

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subsection (1) within the period (the ***application period***) that starts at the beginning of the rehabilitation period and ends:

(i) unless subparagraph (ii) of this paragraph applies—12 months before the end of the rehabilitation period; or

(ii) at such later time (if any) as is determined by the Minister under subsection (6);

then the person cannot apply for a further rehabilitation authority under subsection (1) after the end of the application period.

Note: There are restrictions on when, and how, a rehabilitation authority may be varied before the end of the application period: see subsections 41CO(3) and (4).

(6) The Minister may, in writing, determine a time for the purposes of subparagraph (4)(b)(ii) or (5)(b)(ii).

(7) A determination under subsection (6) is not a legislative instrument.

41CC Powers under rehabilitation authority

(1) If a rehabilitation authority is in force in relation to an area of land, the person or persons on whom the authority has been conferred may (subject to any conditions or restrictions specified in the authority and any requirements imposed by the authority):

(a) carry on, upon or under that land, any operations authorized by the authority; and

(b) do a thing referred to in paragraph 41(2)(a), (b), (e), (ea) or (f) in relation to that land; and

(c) for the purposes of operations authorized by the authority, do a thing referred to in subparagraph 41(2)(d)(i), (ii), (iii) or (iv) in relation to that land; and

(d) do anything necessary or convenient for the effectual exercise of a power referred to in paragraph (a), (b) or (c) of this subsection.

(2) To avoid doubt, conditions or restrictions specified in the authority, or requirements imposed by the authority, may have the effect of

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prohibiting the person or persons from doing a thing referred to in a paragraph in subsection (1).

41CD Rehabilitation authority may impose conditions, restrictions and requirements

(1) A rehabilitation authority may specify conditions or restrictions to which the authority is subject.

(2) A rehabilitation authority may impose requirements on the person or persons on whom the authority has been conferred.

41CE Rehabilitation authority must impose rehabilitation requirements

(1) If a rehabilitation authority is conferred under section 41CA then the Minister must ensure that, at the time when the authority comes into force:

(a) the authority imposes, on the person or persons on whom the authority has been conferred, rehabilitation requirements in relation to the Ranger Project Area; and

(b) those rehabilitation requirements are substantially similar to the environmental requirements that were, immediately before the commencement of this section, imposed by the historic section 41 authority on the person or persons on whom the historic section 41 authority was conferred.

Note: For ***historic section 41 authority***, see subsection 5(1).

(2) In this section:

environmental requirements means the requirements set out in Appendix A to the Schedule to the historic section 41 authority, as those requirements apply under that authority.

41CF Termination of previous Part III authorities

If:

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(a) a rehabilitation authority (the ***new authority***) is conferred under this Part; and
(b) a Part III authority (the ***previous authority***) is in force immediately before the new authority comes into force; and
(c) the person or persons on whom the previous authority has been conferred agree in writing to the previous authority terminating when the new authority comes into force;

then the previous authority terminates when the new authority comes into force.

41CG Assignment of interests in rehabilitation authority

Section 41B applies in relation to a rehabilitation authority in a corresponding way to the way in which it applies in relation to an authority under section 41.

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Division 3—Close-out of Part III authorities

41CH When rehabilitation requirements are taken to be satisfied in relation to an area of land

(1) If a Part III authority imposes a rehabilitation requirement on the person or persons on whom the authority has been conferred, the authority may also specify conditions under which that requirement is taken to be satisfied in relation to the whole, or a part, of the land in the Ranger Project Area.

(2) Without limiting subsection (1), a Part III authority may specify conditions under which a rehabilitation requirement is taken to be satisfied, as mentioned in that subsection, by doing any of the following:

(a) specifying a procedure for determining when the requirement is taken to be satisfied;

(b) conferring on a person or body a function of determining, or a power to determine, when the requirement is taken to be satisfied.

41CI When authority is no longer in force in relation to an area of land

Declaration by Minister

(1) The Minister may declare in writing that, on and after a specified time, a Part III authority, or specified provisions of a Part III authority, are no longer in force in relation to the whole, or a specified part, of the land in the Ranger Project Area.

Note: If the Minister makes such a declaration in relation to an area of land, it may be that:

(a) if the declaration relates only to specified provisions of the authority—other provisions of the authority remain in force in relation to that area of land; and

(b) the whole of the authority remains in force in relation to other areas of land.

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(2) However, the Minister may only make a declaration under subsection (1) if:
   (a) the rehabilitation requirements imposed by the Part III authority in relation to the whole or that part (as applicable) of the land in the Ranger Project Area have been satisfied or are taken to have been satisfied; and
   (b) before the Minister makes the declaration, the person or persons on whom the authority has been conferred agree in writing to the Minister making the declaration; and
   (c) before the Minister makes the declaration, the Minister consults on the proposed declaration with the Land Council for each area of land to which the declaration relates.

Note: Paragraph (a): a rehabilitation authority may specify conditions under which a rehabilitation requirement imposed by the authority is taken to be satisfied (see section 41CH).

(3) A declaration under subsection (1) has effect for the purposes of this Act.

Declaration may have effect of terminating authority

(4) If a declaration or declarations under subsection (1) have the effect that, on and after a certain time, no provisions of the Part III authority are in force in relation to any part of the land in the Ranger Project Area, then the Part III authority terminates at that time.

Copies of the declaration

(5) If the Minister makes a declaration under subsection (1), the Minister must give a copy of the declaration to each of the following:
   (a) the person or persons on whom the Part III authority has been conferred;
   (b) the Land Council for each area of land to which the declaration relates;
   (c) the Minister who administers the *Environment Protection and Biodiversity Conservation Act 1999*;

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(d) the Northern Territory Mining Minister.

Declaration not a legislative instrument

(6) A declaration under subsection (1) is not a legislative instrument.

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Division 4—Variation and revocation of Part III authorities

41CJ Variation of Part III authorities—overview

A Part III authority may only be varied under the following provisions:

(a) section 41CK;

(b) a provision of the authority (if any) that provides for the authority to be varied.

Note: Interests in a Part III authority may be assigned under section 41B (which applies in relation to a rehabilitation authority in a corresponding way to the way in which it applies in relation to an authority under section 41: see section 41CG).

41CK Minister may vary Part III authority

Variation in response to failure to comply with authority

(1) The Minister may, in writing, vary a Part III authority if:

(a) a person on whom the authority has been conferred has failed to comply with a condition or restriction to which the authority is subject, or with a requirement imposed by the authority; and

(b) the Minister considers that the variation is an appropriate response to that failure.

Variation to extend period for which authority is in force

(2) The Minister may, in writing, vary a Part III authority by extending the period for which the authority is in force.

Variation to ensure continued effective operation of authority

(3) The Minister may, in writing, vary a Part III authority if the Minister considers that doing so is necessary to ensure the continued effective operation of the authority.

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Variation to specify close-out conditions

(4) The Minister may, in writing, vary a Part III authority by specifying in the authority conditions under which a rehabilitation requirement imposed by the authority is taken to be satisfied in relation to the whole, or a part, of the land in the Ranger Project Area.

Note: Subsection 41CH(1) permits a Part III authority to specify conditions of this kind. Subsection 41CH(2) mentions some ways in which a Part III authority may specify conditions of this kind.

(5) However, if a Part III authority already specifies conditions (the ***existing conditions***) of that kind, then a variation of the authority under subsection (4) must not:

(a) vary the existing conditions (other than in minor or technical ways) or remove the existing conditions; or

(b) specify conditions that are inconsistent with the existing conditions.

Powers of variation under this section are independent

(6) A power to vary a Part III authority under a subsection in this section is in addition to, and does not limit, a power to vary a Part III authority under any other subsection in this section.

41CL Variation of Part III authorities—agreement with Land Council must be in force

The Minister must not vary a Part III authority under section 41CK unless, at the time when the instrument of variation is made, the following conditions are satisfied in relation to each area of land to which the authority as varied will relate:

(a) an agreement between the Commonwealth and the Land Council for the area of land, of the kind referred to in subsection 44(2) of the *Aboriginal Land Rights (Northern Territory) Act 1976* (as that Act applies in relation to the Ranger Project Area), is in force;

(b) that agreement relates to:

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(i) the area of land; and

(ii) the whole of the remaining period for which the authority as varied is to be in force in relation to the area of land (as that period is to be specified in the authority immediately after the variation takes effect).

Note: The version of subsection 44(2) of the *Aboriginal Land Rights (Northern Territory) Act 1976* that applies in relation to the Ranger Project Area is the version in force immediately before the commencement of the *Aboriginal Land Rights (Northern Territory) Amendment Act (No. 3) 1987*: see section 8 of that amendment Act.

41CM Variation of Part III authorities—consultation

The Minister must not vary a Part III authority under section 41CK unless, before varying the authority, the Minister consults on the proposed variation with all of the following:

(a) the person or persons on whom the authority has been conferred;

(b) the Land Council for each area of land to which the authority relates;

(c) the Minister who administers the *Environment Protection and Biodiversity Conservation Act 1999*.

41CN Variation of Part III authorities—notice etc.

Notice before variation

(1) The Minister must not vary a Part III authority under section 41CK unless, before varying the authority, the Minister:

(a) gives the person or persons on whom the authority has been conferred written notice of the details of the proposed variation; and

(b) gives that person or persons a reasonable opportunity, after receiving the notice, to make representations to the Minister in relation to the proposed variation.

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Notice after variation

(2) The Minister must, after varying a Part III authority under section 41CK, give written notice of the variation to the person or persons on whom the authority has been conferred.

Copies of the variation

(3) If the Minister varies a Part III authority under section 41CK, the Minister must give a copy of the instrument of variation, and of the Part III authority as varied, to each of the following:
   (a) the person or persons on whom the authority has been conferred;
   (b) the Land Council for each area of land to which the authority relates;
   (c) the Minister who administers the *Environment Protection and Biodiversity Conservation Act 1999*;
   (d) the Northern Territory Mining Minister.

41CO Variation of Part III authorities—timing

Variation of authority under section 41

(1) If an authority under section 41 (the ***relevant section 41 authority***) satisfies the condition in paragraph 41CB(4)(a), then the authority must not be varied under section 41CK until after the last application time (within the meaning of paragraph 41CB(4)(b)).

Exception to subsection (1)

(2) Despite subsection (1), if:
   (a) a person on whom the relevant section 41 authority has been conferred applies for a rehabilitation authority; and
   (b) the Minister gives the person notice under paragraph 41CA(4)(a) of the proposed terms of the rehabilitation authority; and

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(c) the person does not agree to those proposed terms under paragraph 41CA(4)(b) within a reasonable period after that notice is given;

then the Minister may vary the relevant section 41 authority under section 41CK after the end of that reasonable period.

Variation of rehabilitation authority to extend period for which authority is in force

(3) A rehabilitation authority must not be varied under section 41CK to extend the period for which the authority is in force until after the end of the application period (within the meaning of paragraph 41CB(5)(b)) that applies under subsection 41CB(5) in relation to a person on whom the authority has been conferred.

Exception to subsection (3)

(4) Despite subsection (3), if:

(a) a person on whom a rehabilitation authority (the ***existing rehabilitation authority***) has been conferred applies for a further rehabilitation authority (the ***new rehabilitation authority***); and

(b) the Minister gives the person notice under paragraph 41CA(4)(a) of the proposed terms of the new rehabilitation authority; and

(c) the person does not agree to those proposed terms under paragraph 41CA(4)(b) within a reasonable period after that notice is given;

then the Minister may, after the end of that reasonable period, vary the existing rehabilitation authority under section 41CK to extend the period for which the authority is force.

No effect on other variations

(5) To avoid doubt, subsections (3) and (4) do not have any effect on when a variation of a rehabilitation authority may be made if the variation is not a variation under section 41CK to extend the period for which the authority is in force.

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41CP Variation of Part III authorities—other matters

When variation takes effect

(1) A variation under section 41CK takes effect on the later of the following:
   (a) the day (if any) specified in the instrument of variation as the day the variation takes effect;
   (b) the day after the day when notice of the variation is given in accordance with subsection 41CN(2).

Variation not a legislative instrument

(2) An instrument of variation under section 41CK is not a legislative instrument.

41CQ Revocation of Part III authorities—overview

A Part III authority may only be revoked under the following provisions:
   (a) if the authority is an authority under section 41—section 41C or 41CR;
   (b) in any case—a provision of the authority (if any) that provides for the authority to be revoked.

41CR Minister may revoke authority under section 41

Minister may revoke authority if satisfied of certain matters

(1) The Minister may, in writing, revoke an authority under section 41 if:
   (a) the Minister has received an application under subsection (2) for the authority to be revoked; and
   (b) the Minister is satisfied that the person or persons on whom the authority has been conferred have complied with any conditions or restrictions to which the authority is subject, and any requirements imposed by the authority, that relate to

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the protection, rehabilitation, remediation or monitoring of land in the Ranger Project Area.

(2) The person or persons on whom an authority under section 41 has been conferred may apply in writing to the Minister for the authority to be revoked under subsection (1) of this section.

Consultation with Land Council

(3) The Minister must not revoke an authority under subsection (1) unless, before revoking the authority, the Minister consults on the proposed revocation with the Land Council for each area of land to which the authority relates.

When revocation takes effect

(4) A revocation of an authority under subsection (1) takes effect on the later of the following:
   (a) the day (if any) specified in the instrument of revocation as the day the revocation takes effect;
   (b) the day after the day when a copy of the instrument of revocation is given to the person or persons on whom the authority has been conferred, in accordance with paragraph (5)(a).

Copies of the revocation

(5) If the Minister revokes an authority under subsection (1), the Minister must give a copy of the instrument of revocation to each of the following:
   (a) the person or persons on whom the authority has been conferred;
   (b) the Land Council for each area of land to which the authority relates;
   (c) the Minister who administers the *Environment Protection and Biodiversity Conservation Act 1999*;
   (d) the Northern Territory Mining Minister.

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Revocation not a legislative instrument

(6) An instrument of revocation under subsection (1) is not a legislative instrument.

41CS Variation and revocation must be consistent with Commonwealth obligations

(1) The Minister's power to vary or revoke a Part III authority (whether under section 41CK or 41CR or otherwise) must not be exercised in a manner that is inconsistent with the obligations of the Commonwealth under an agreement specified in subsection (2) of this section, as that agreement is in force at the time of the exercise of the power.

(2) For the purposes of subsection (1), an agreement entered into by the Commonwealth under section 44 or 46 of the *Aboriginal Land Rights (Northern Territory) Act 1976* (as that Act applies in relation to the Ranger Project Area) is specified.

Note: The versions of sections 44 and 46 of the *Aboriginal Land Rights (Northern Territory) Act 1976* that apply in relation to the Ranger Project Area are the versions in force immediately before the commencement of the *Aboriginal Land Rights (Northern Territory) Amendment Act (No. 3) 1987*: see section 8 of that amendment Act.

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Division 5—Other matters relating to Part III authorities

41CT Conferral of functions and powers

A Part III authority may confer functions and powers on a person or body in relation to any matter arising under, or in connection with, the authority.

41CU Incorporation of matters in other instruments

Despite subsection 46AA(2) of the *Acts Interpretation Act 1901*, a Part III authority may make provision in relation to a matter by applying, adopting or incorporating, with or without modification, any matter contained in an instrument or other writing as in force or existing from time to time.

41CV Part III authority not a legislative instrument

A Part III authority is not a legislative instrument.

41CW Exemption from Part 3 of the *Environment Protection and Biodiversity Conservation Act 1999*

(1) Part 3 of the *Environment Protection and Biodiversity Conservation Act 1999* does not apply to:
   (a) actions authorized by the historic section 41 authority or by a rehabilitation authority; or
   (b) actions that a person has the power to perform under section 41 or 41CC of this Act because such an authority is in force.

Note: For ***historic section 41 authority***, see subsection 5(1).

(2) Subsection (1) only applies to actions that are taken in accordance with any conditions or restrictions specified in, or any requirements imposed by, the historic section 41 authority or the rehabilitation authority.

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41CX Restrictions under the *Aboriginal Land Rights (Northern Territory) Act 1976* on entry onto land etc.

To avoid doubt, a reference to "the *Atomic Energy Act 1953* or any other Act authorizing mining for minerals" in Part IV of the *Aboriginal Land Rights (Northern Territory) Act 1976* (as that Act applies in relation to the Ranger Project Area) includes a reference to this Act:

(a) whether or not a Part III authority is in force under this Act; and

(b) if a Part III authority is in force under this Act—whether or not the authority authorizes the carrying on of mining-related operations in relation to the whole, or a part, of the land in the Ranger Project Area.

Note: The version of Part IV of the *Aboriginal Land Rights (Northern Territory) Act 1976* that applies in relation to the Ranger Project Area is the version in force immediately before the commencement of the *Aboriginal Land Rights (Northern Territory) Amendment Act (No. 3) 1987*: see section 8 of that amendment Act.

41CY Concurrent operation of State and Territory laws

Except as provided by the regulations, nothing in this Part is intended to exclude or limit the operation of any provision of a law of a State or Territory that is capable of operating concurrently with this Part.

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Division 6—Offences and compensation

41D Offences relating to breach of condition etc.

(1) A person on whom a Part III authority has been conferred must not refuse to comply with:
  (a) a condition or restriction to which the authority is subject; or
  (b) a requirement imposed on the person by the authority.

Penalty:
  (a) in the case of a natural person—20 penalty units; or
  (b) in the case of a body corporate—100 penalty units.

(2) A person on whom a Part III authority has been conferred must not fail to comply with:
  (a) a condition or restriction to which the authority is subject; or
  (b) a requirement imposed on the person by the authority.

Penalty:
  (a) in the case of a natural person—20 penalty units; or
  (b) in the case of a body corporate—100 penalty units.

(3) An offence against subsection (2) is an offence of strict liability.

Note: For ***strict liability***, see section 6.1 of the *Criminal Code*.

41E Offences relating to entry etc. on land

(1) A person commits an offence if:
  (a) the person enters land of which another person is in possession under this Part; or
  (b) the person is on land of which another person is in possession under this Part.

Penalty: 10 penalty units.

(2) Subsection (1) does not apply if the person enters, or is on, land:
  (a) with the consent of the person in possession of the land; or

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(b) because of a right or power conferred by law.

Note: A defendant bears an evidential burden in relation to the matter in subsection (2), see subsection 13.3(3) of the *Criminal Code*.

42 Compensation for certain matters

Where:

(a) any prescribed substance is or any minerals are acquired by the Commonwealth by virtue of Part II or this Part; or

(b) a person suffers loss or damage by reason of anything done in pursuance of section 41 or 41CA;

the Commonwealth is liable to pay to a person who had a right, title or interest in the prescribed substance or minerals, or to the person who has suffered the loss or damage, as the case may be, such compensation as is agreed on between the Commonwealth and that person or, in default of agreement, is determined by action against the Commonwealth in a court of competent jurisdiction.

43 Compensation for acquisition of property

(1) If, apart from this section, and taking into account the operation of section 42, the operation of this Part would result in an acquisition of property (within the meaning of paragraph 51(xxxi) of the Constitution) from a person otherwise than on just terms (within the meaning of that paragraph), the Commonwealth is liable to pay a reasonable amount of compensation to the person.

(2) If the Commonwealth and the person do not agree on the amount of the compensation, the person may institute proceedings in the Federal Court of Australia or the Supreme Court of a State or Territory for the recovery from the Commonwealth of such reasonable amount of compensation as the court determines.

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Part V—Miscellaneous

59 Delegation

(1) The Minister may, in relation to a matter or class of matters, or in relation to a part of Australia, by writing under his or her hand, delegate to any person all or any of his or her powers and functions under this Act (except this power of delegation) so that the delegated powers and functions may be exercised by the delegate with respect to the matter or class of matters, or the part of Australia, specified in the instrument of delegation.

(2) A delegation under this section is revocable at will and does not prevent the exercise of a power or function by the Minister.

65 Regulations

The Governor-General may make regulations, not inconsistent with this Act, prescribing matters:

(a) required or permitted by this Act to be prescribed; or

(b) necessary or convenient to be prescribed for carrying out or giving effect to this Act.

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Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes
Endnote 2—Abbreviation key
Endnote 3—Legislation history
Endnote 4—Amendment history

Abbreviation key—Endnote 2
The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4
Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes
The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments
A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment

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can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and "(md not incorp)" is added to the amendment history.

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Endnote 2—Abbreviation key

ad = added or inserted

am = amended

amdt = amendment

c = clause(s)

C[x] = Compilation No. x

Ch = Chapter(s)

def = definition(s)

Dict = Dictionary

disallowed = disallowed by Parliament

Div = Division(s)

ed = editorial change

exp = expires/expired or ceases/ceased to have effect

F = Federal Register of Legislation

gaz = gazette

LA = *Legislation Act 2003*

LIA = *Legislative Instruments Act 2003*

(md) = misdescribed amendment can be given effect

(md not incorp) = misdescribed amendment cannot be given effect

mod = modified/modification

No. = Number(s)

o = order(s)

Ord = Ordinance

orig = original

par = paragraph(s)/subparagraph(s)/sub-subparagraph(s)

pres = present

prev = previous

(prev…) = previously

Pt = Part(s)

r = regulation(s)/rule(s)

reloc = relocated

renum = renumbered

rep = repealed

rs = repealed and substituted

s = section(s)/subsection(s)

Sch = Schedule(s)

Sdiv = Subdivision(s)

SLI = Select Legislative Instrument

SR = Statutory Rules

Sub-Ch = Sub-Chapter(s)

SubPt = Subpart(s)

<u>underlining</u> = whole or part not commenced or to be commenced

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Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Atomic Energy Act 1953	31, 1953	15 Apr 1953	15 Apr 1953	
Atomic Energy Act 1958	1, 1958	1 Apr 1958	1 Apr 1958	s 3(2)
Statute Law Revision (Decimal Currency) Act 1966	93, 1966	29 Oct 1966	1 Dec 1966	—
Atomic Energy Act 1973	131, 1973	13 Nov 1973	13 Nov 1973	—
Statute Law Revision Act 1973	216, 1973	19 Dec 1973	31 Dec 1973	s 9(1) and 10
Administrative Changes (Consequential Provisions) Act 1976	91, 1976	20 Sept 1976	Sch: 22 Dec 1975 (s 2(7)) s 4: 20 Sept 1975 (s.2(1))	s 4
Atomic Energy Amendment Act 1978	31, 1978	9 June 1978	9 June 1978	—
Administrative Changes (Consequential Provisions) Act 1978	36, 1978	12 June 1978	12 June 1978	—
Atomic Energy Amendment Act (No. 2) 1978	182, 1978	4 Dec 1978	s 6: 15 Jan 1979 (*see* *Gazette* 1979, No. S3) Remainder: Royal Assent	—
Atomic Energy Amendment Act 1979	44, 1979	14 June 1979	14 June 1979	s 9
Australian Federal Police (Consequential Amendments) Act 1979	155, 1979	28 Nov 1979	19 Oct 1979 (*see* s 2 and *Gazette* 1979, No. S206)	—
Atomic Energy Amendment Act 1980	9, 1980	29 Mar 1980	29 Mar 1980	—

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Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Australian Federal Police (Consequential Amendments) Act 1980	70, 1980	28 May 1980	28 May 1980	—
Atomic Energy Amendment Act (No. 2) 1980	119, 1980	11 Sept 1980	11 Sept 1980	—
Statute Law Revision Act 1981	61, 1981	12 June 1981	s 115: Royal Assent	—
Public Service Reform Act 1984	63, 1984	25 June 1984	s 151(1), (9): 1 July 1984 (*see Gazette* 1984, No. S245) s 152(1): 20 July 1984 (*see Gazette* 1984, No. S276)	s 151(9)
Statute Law (Miscellaneous Provisions) Act (No. 1) 1985	65, 1985	5 June 1985	s 3: 3 July 1985	—
Atomic Energy Amendment Act 1987	5, 1987	13 Mar 1987	27 Apr 1987 (*see* s 2 and *Gazette* 1987, No. S68)	—
Industry, Science and Resources Legislation Amendment (Application of Criminal Code) Act 2001	140, 2001	1 Oct 2001	s 4 and Sch 1 (items 1–8): 2 Oct 2001 (s 2)	s 4
Statute Law Revision Act 2008	73, 2008	3 July 2008	Sch 4 (items 53–76): 4 July 2008 (s 2(1) item 64)	—
Statute Law Revision Act (No. 2) 2015	145, 2015	12 Nov 2015	Sch 3 (item 6): 10 Dec 2015 (s 2(1) item 7)	—
Statute Law Revision Act (No. 1) 2016	4, 2016	11 Feb 2016	Sch 4 (items 1, 21): 10 Mar 2016 (s 2(1) item 6)	—

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Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Statute Update Act 2016	61, 2016	23 Sept 2016	Sch 1 (items 38–48): 21 Oct 2016 (s 2(1) item 1)	—
Atomic Energy Amendment (Mine Rehabilitation and Closure) Act 2022	63, 2022	29 Nov 2022	30 Nov 2022 (s 2(1) item 1)	Sch 1 (items 25, 26)

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Endnote 4—Amendment history

Provision affected	How affected
Part I	
s. 3	rep. No. 216, 1973
s. 4	rep. No. 5, 1987
s 5	am No 131, 1973; No 216, 1973; No 31, 1978; No 182, 1978; No 44, 1979; No 155, 1979; No 70, 1980; No 119, 1980; No 63, 1984; No 5, 1987; No 63, 2022
s. 6	rs. No. 5, 1987
	am No 145, 2015
s. 7	am. Nos. 131 and 216, 1973
	rs. No. 5, 1987
Part II	rep. No. 5, 1987
s. 8	rep. No. 5, 1987
s. 9	am. No. 1, 1958; No. 131, 1973; No. 44, 1979
	rep. No. 5, 1987
s. 10	rep. No. 5, 1987
s. 11	am. No. 216, 1973
	rs. No. 31, 1978
	rep. No. 65, 1985
s. 11A	ad. No. 31, 1978
	rep. No. 5, 1987
s. 12	rep. No. 5, 1987
s. 12A	ad. No. 1, 1958
	rep. No. 5, 1987
s. 13	rs. No. 1, 1958
	am. No. 131, 1973; No. 44, 1979
	rep. No. 5, 1987
s. 14	rep. No. 5, 1987
s. 15	am. No. 1, 1958; No. 44, 1979
	rep. No. 5, 1987

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Provision affected	How affected
s. 16	rep. No. 5, 1987
s. 17	am. Nos. 131 and 216, 1973; No. 31, 1978
	rep. No. 5, 1987
s. 18	am. No. 44, 1979
	rep. No. 5, 1987
s. 19	am. No. 91, 1976
	rep. No. 5, 1987
s. 20	am. No. 31, 1978
	rep. No. 5, 1987
Division 3	rs. No. 44, 1979
	rep. No. 5, 1987
s. 21	am. No. 1, 1958; No. 93, 1966; No. 216, 1973
	rs. No. 44, 1979
	am. No. 63, 1984
	rep. No. 5, 1987
s. 22	am. No. 216, 1973; No. 31, 1978
	rs. No. 44, 1979
	rep. No. 65, 1985
ss. 23, 24	rep. No. 44, 1979
s. 25	rs. No. 1, 1958
	am. No. 216, 1973
	rs. No. 44, 1979
	rep. No. 5, 1987
ss. 26, 27	rs. No. 1, 1958
	am. No. 216, 1973; No. 36, 1978
	rs. No. 44, 1979
	rep. No. 5, 1987
s. 28	rs. No. 44, 1979
	rep. No. 5, 1987
s. 29	am. No. 93, 1966
	rs. No. 44, 1979

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Endnote 4—Amendment history

Provision affected	How affected
	rep. No. 5, 1987
s. 30	rs. No. 1, 1958; No. 44, 1979; No. 119, 1980
	rep. No. 5, 1987
ss. 30AA–30AC	ad. No. 119, 1980
	rep. No. 5, 1987
s. 30A	ad. No. 1, 1958
	rs. No. 44, 1979
	rep. No. 5, 1987
ss. 30B–30D	ad. No. 44, 1979
	rep. No. 5, 1987
s. 31	rs. No. 1, 1958
	am. Nos. 31 and 36, 1978; No. 44, 1979
	rep. No. 5, 1987
s. 32	am. No. 216, 1973
	rs. No. 44, 1979
	rep. No. 5, 1987
s. 33	am. No. 36, 1978
	rep. No. 5, 1987
Part III heading	rep. No. 5, 1987
s. 34	am. No. 216, 1973
	rs. No. 31, 1978; No. 5, 1987
s. 34A	ad. No. 140, 2001
Part II	
Part II heading	ad. No. 5, 1987
s. 35	am. Nos. 131 and 216, 1973; No. 44, 1979
s 36	am No 44, 1979; No 5, 1987; No 140, 2001; No 73, 2008; No 61, 2016
s 37	am No 5, 1987; No 140, 2001; No 73, 2008; No 61, 2016
s. 38	am. No. 1, 1958; Nos. 131 and 216, 1973
	rs. No. 31, 1978
	rep. No. 5, 1987
ss. 39, 40	rep. No. 5, 1987

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Provision affected	How affected
Part III	
Part III heading	ad. No. 5, 1987
Division 1	
Division 1 heading	ad No 63, 2022
s 41	am No 31, 1978; No 182, 1978; No 44, 1979; No 9, 1980; No 119, 1980; No 61, 1981; No 5, 1987; No 73, 2008; No 63, 2022
s 41A	ad No 182, 1978
	am No 73, 2008;
	rep No 63, 2022
s. 41B	ad. No. 182, 1978
	am. No. 73, 2008
s. 41C	ad. No. 182, 1978
	am. No. 73, 2008
Division 2	
Division 2	ad No 63, 2022
s 41CA	ad No 63, 2022
s 41CB	ad No 63, 2022
s 41CC	ad No 63, 2022
s 41CD	ad No 63, 2022
s 41CE	ad No 63, 2022
s 41CF	ad No 63, 2022
s 41CG	ad No 63, 2022
Division 3	
Division 3	ad No 63, 2022
s 41CH	ad No 63, 2022
s 41CI	ad No 63, 2022
Division 4	
Division 4	ad No 63, 2022
s 41CJ	ad No 63, 2022
s 41CK	ad No 63, 2022
s 41CL	ad No 63, 2022

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Endnote 4—Amendment history

Provision affected	How affected
s 41CM	ad No 63, 2022
s 41CN	ad No 63, 2022
s 41CO	ad No 63, 2022
s 41CP	ad No 63, 2022
s 41CQ	ad No 63, 2022
s 41CR	ad No 63, 2022
s 31CS	ad No 63, 2022
Division 5	
Division 5	ad No 63, 2022
s 41CT	ad No 63, 2022
s 41CU	ad No 63, 2022
s 41CV	ad No 63, 2022
s 41CW	ad No 63, 2022
s 41CX	ad No 63, 2022
s 41CY	ad No 63, 2022
Division 6	
Division 6 heading	ad No 63, 2022
s 41D	ad No 5, 1987
	am No 140, 2001; No 61, 2016; No 63, 2022
s 41E	ad No 140, 2001
	am No 4, 2016; No 61, 2016
s 42	am No 182, 1978; No 5, 1987; No 63, 2022
s 43	am No 93, 1966; No 131, 1973; No 31, 1978; No 44, 1979
	rep No. 5, 1987
	ad No 63, 2022
Part IV	rep. No. 5, 1987
ss. 44–46	am. No. 44, 1979
	rep. No. 5, 1987
s. 47	am. No. 131, 1973
	rep. No. 5, 1987
ss. 48, 49	am. No. 44, 1979

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Provision affected	How affected
	rep. No. 5, 1987
s. 50	am. Nos. 131 and 216, 1973; No. 44, 1979
	rep. No. 5, 1987
s. 51	rep. No. 5, 1987
s. 52	am. Nos. 131 and 216, 1973
	rep. No. 5, 1987
s. 53	am. No. 44, 1979
	rep. No. 5, 1987
s. 54	am. No. 216, 1973
	rep. No. 9, 1980
s. 55	am. No. 44, 1979
	rep. No. 5, 1987
s. 56	am. No. 131, 1973; No. 44, 1979
	rep. No. 5, 1987
s. 57	am. No. 44, 1979
	rep. No. 5, 1987
s. 58	rep. No. 9, 1980
Part V	
s. 59	am. No. 73, 2008
s. 60	rs. No. 9, 1980
	rep. No. 5, 1987
s. 61	am. Nos. 131 and 216, 1973
	rep. No. 31, 1978
s. 62	am. No. 44, 1979
	rep. No. 5, 1987
s. 63	rep. No. 5, 1987
s. 64	am. No. 93, 1966; No. 131, 1973; No. 44, 1979
	rep. No. 5, 1987
s. 65	am. No. 93, 1966; No. 44, 1979
	rs. No. 5, 1987
The Schedule heading	rep. No. 131, 1973

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Endnote 4—Amendment history

Provision affected	How affected
Schedule heading	ad. No. 131, 1973
	rep. No. 5, 1987
Schedule	rep. No. 5, 1987

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